

PETITION FOR EXPUNGEMENT OF MISDEMEANOR RECORDS

FOURTH JUDICIAL DISTRICT COURT

County: Missoula, Montana

In re Expungement of Misdemeanor Records of: Maria-Alejandra Isabel O'Shaughnessy-Whitfield, Petitioner

Civil case number - clerk assigned: _____

Petitioner contact: Maria-Alejandra Isabel O'Shaughnessy-Whitfield; 1188 Upper Tallapoosa Crossing Road, Apartment 14B, Missoula, MT 59801; (406) 555-0142; maria.oshaughnessy.whitfield@example.org

Other names used in convictions: None

Petitioner seeks relief under Montana Code Annotated Title 46, chapter 18, part 11, including sections 46-18-1104(1), 46-18-1105, 46-18-1107, 46-18-1108, 46-18-1103(1) and 46-18-1110. The following are participant allegations, not court findings.

At least one listed conviction occurred in FOURTH JUDICIAL DISTRICT, establishing venue under MCA 46-18-1105. This is the participant-selected eligible district where a choice exists.

I have not previously petitioned for or received expungement under Part 11. I understand this is a once-in-a-lifetime petition and omitted convictions cannot be added later. I reviewed the CRISS record and BOTH Montana Public Access Portals and confirm the complete inventory below.

Conviction 1: Theft; case TK-2015-000001; conviction 2015-02-11; Lewis and Clark County Justice Court; FIRST JUDICIAL DISTRICT; Lewis and Clark County.

Conviction 2: Criminal mischief; case TK-2015-000002; conviction 2015-02-12; Lewis and Clark County Justice Court; FIRST JUDICIAL DISTRICT; Lewis and Clark County.

Conviction 3: Disorderly conduct; case TK-2015-000003; conviction 2015-02-13; Lewis and Clark County Justice Court; FIRST JUDICIAL DISTRICT; Lewis and Clark County.

Conviction 4: Criminal trespass; case TK-2015-000004; conviction 2015-02-14; Missoula County Justice Court; FOURTH JUDICIAL DISTRICT; Missoula County.

Conviction 5: Theft; case TK-2015-000005; conviction 2015-02-15; Missoula County Justice Court; FOURTH JUDICIAL DISTRICT; Missoula County.

The attached continuation is incorporated and lists the complete inventory and all prosecution offices.

I completed all sentencing terms, including every fine, fee, restitution obligation and court-ordered treatment, on 2020-09-13. I have had no conviction of any offense in Montana, another state or federal court since completion.

I am not detained for an offense, charged with an offense or subject to pending charges. Prosecution-office verification under MCA 46-18-1107(1) remains for the prosecution office. I will be fingerprinted to validate identity under MCA 46-18-1104(3).

I invoke the presumption in MCA 46-18-1107(1)(a): at least five years have passed since completion of all sentencing terms without a conviction of any offense during that period.

No listed conviction falls within the categories in MCA 46-18-1108(1). I do not ask this packet to write a rehabilitation or public-safety argument.

REQUESTED RELIEF: expunge the enumerated misdemeanor records from the DOJ criminal history record information system by permanently destroying, deleting or erasing them under MCA 46-18-1103(1); direct every

involved arresting agency, prosecutor and convicting-court clerk to permanently seal their records under MCA 46-18-1110(2)(a); and direct the clerk to seal this expungement matter. I am responsible for distribution under MCA 46-18-1110(2)(b). The court may grant all, some or none.

I declare under penalty of perjury under the laws of the State of Montana that the facts I supply in this petition and its incorporated continuation are true and correct.

Petitioner signature: _____

Date signed: _____

City and state where signed: _____

CERTIFICATE OF SERVICE

FOURTH JUDICIAL DISTRICT COURT

County: Missoula, Montana

In re Expungement of Misdemeanor Records of: Maria-Alejandra Isabel O'Shaughnessy-Whitfield, Petitioner

Civil case number - clerk assigned: _____

Under MCA 46-18-1106(1), notice must reach every office that prosecuted an included offense. I certify the actual service recorded below occurred AFTER filing and used a file-stamped petition, including its continuation. Complete only after service.

Office 1: Lewis and Clark County Attorney; 100 Example Civic Avenue, Helena, MT 59601; county@example.org

Actual service date for office 1: _____

Available service methods: mail, hand delivery or email under confirmed local procedure.

Actual service method for office 1: _____

Printed name of actual server: _____

Server signature for office 1: _____

Office 2: Helena City Attorney; 100 Example Civic Avenue, Helena, MT 59601; city@example.org

Actual service date for office 2: _____

Available service methods: mail, hand delivery or email under confirmed local procedure.

Actual service method for office 2: _____

Printed name of actual server: _____

Server signature for office 2: _____

Office 3: Missoula County Attorney; 100 Example Civic Avenue, Missoula, MT 59601; missoula@example.org

Actual service date for office 3: _____

Available service methods: mail, hand delivery or email under confirmed local procedure.

Actual service method for office 3: _____

Printed name of actual server: _____

Server signature for office 3: _____

Prosecution offices attempt victim notice within fourteen days of receipt. The participant does not notify victims.
This is not a prosecution-response deadline.

PROPOSED ORDER ON MISDEMEANOR EXPUNGEMENT

FOURTH JUDICIAL DISTRICT COURT

County: Missoula, Montana

In re Expungement of Misdemeanor Records of: Maria-Alejandra Isabel O'Shaughnessy-Whitfield, Petitioner

Civil case number - clerk assigned: _____

The requested convictions appear in the petition and incorporated continuation. The court may grant all, some or none; this proposed order does not fill judicial findings or choose which convictions are granted.

Court findings of good cause and statutory requirements: _____

Court determination under the preponderance standard: _____

Court identification of convictions granted expungement: _____

Upon its findings, IT IS ORDERED as to ONLY the convictions the court identifies above: 1. The Department of Justice shall permanently destroy, delete or erase their records from the criminal history record information system. 2. Each involved arresting agency, prosecution office and convicting court shall permanently seal all records in its possession under MCA 46-18-1110(2)(a). 3. Petitioner shall send the order, fingerprints and DOJ form to those agencies, prosecution offices, convicting-court clerks and the Department of Justice under MCA 46-18-1110(2)(b). 4. The clerk shall seal the record of this expungement matter.

Order date: _____

Presiding judge signature: _____

CONTINUATION - COMPLETE CONVICTIONS AND PROSECUTION OFFICES

FOURTH JUDICIAL DISTRICT COURT

County: Missoula, Montana

In re Expungement of Misdemeanor Records of: Maria-Alejandra Isabel O'Shaughnessy-Whitfield, Petitioner

Civil case number - clerk assigned: _____

Incorporated into the petition. Retain with every served petition and with the DOJ submission for granted convictions.

Conviction 1: Theft; case TK-2015-000001; conviction 2015-02-11; Lewis and Clark County Justice Court; FIRST JUDICIAL DISTRICT; Lewis and Clark County.

Conviction 2: Criminal mischief; case TK-2015-000002; conviction 2015-02-12; Lewis and Clark County Justice Court; FIRST JUDICIAL DISTRICT; Lewis and Clark County.

Conviction 3: Disorderly conduct; case TK-2015-000003; conviction 2015-02-13; Lewis and Clark County Justice Court; FIRST JUDICIAL DISTRICT; Lewis and Clark County.

Conviction 4: Criminal trespass; case TK-2015-000004; conviction 2015-02-14; Missoula County Justice Court; FOURTH JUDICIAL DISTRICT; Missoula County.

Conviction 5: Theft; case TK-2015-000005; conviction 2015-02-15; Missoula County Justice Court; FOURTH JUDICIAL DISTRICT; Missoula County.

Conviction 6: Criminal mischief; case TK-2015-000006; conviction 2015-02-16; Missoula County Justice Court; FOURTH JUDICIAL DISTRICT; Missoula County.

Prosecution office 1: Lewis and Clark County Attorney; 100 Example Civic Avenue, Helena, MT 59601; county@example.org

Prosecution office 2: Helena City Attorney; 100 Example Civic Avenue, Helena, MT 59601; city@example.org

Prosecution office 3: Missoula County Attorney; 100 Example Civic Avenue, Missoula, MT 59601; missoula@example.org

**STATE OF MONTANA
DEPARTMENT OF JUSTICE
DIVISION OF CRIMINAL INVESTIGATION
Criminal Records & Identification Services Section**



Expungement/Removal Request Form

PLEASE CHOOSE APPROPRIATE REQUEST TYPE:

☒ **Misdemeanor Conviction Expungement-** (One Time Privilege)- Per MCA Title 46, Chapter 18, Part 11.
SUBMISSION MUST INCLUDE: • **FD-258 Blue Applicant Fingerprint Card** • **Original Court Judgement**
• **District Court Order of the Expungement**

☐ **Marijuana Conviction Expungement-** MCA Title 16, Chapter 12, Part 1.
SUBMISSION MUST INCLUDE: • **Original Court Judgment** • **Court Order of the Expungement**

☐ **Non-Conviction Removal-** MCA Title 44, Chapter 5, Part 2.
SUBMISSION MUST INCLUDE: • **Court Judgment**

☐ **Deferred Imposition/Prosecution: Dismissed** – Criminal Justice Record Sealing
SUBMISSION MUST INCLUDE: • **Original Court Judgment** • **Court Order Dismissing Deferred Imposition/Prosecutions**

I, (print legibly) Maria-Alejandra Isabel O'Shaughnessy-Whitfield respectfully request an Expungement
of a Conviction/Removal of an arrest, that occurred on (date of arrest/fingerprinted) 09/11/2026.

I was charged and fingerprinted for [(list charge(s)):
Theft; TK-2015-000001

Criminal mischief; TK-2015-000002

Disorderly conduct; TK-2015-000003

See attached complete schedule: 6 convictions.

Date of Birth: 04/17/1991 Last 4-digits of Social Security Number(optional): _____

Return Address: 1188 Upper Tallapoosa Crossing Road, Apartment 14B
Missoula, MT 59801

Phone Number: (406) 555-0142

E-mail: maria.oshaughnessy.whitfield@example.org

Signature: _____

Date: _____

Mail Requests to CRISS Expungement,
2225 11th Ave. PO Box 201403, Helena, MT 59620
For Questions Call: 406-444-3625
CRISS will provide a confirmation letter once request is processed.

**STATE OF MONTANA
DEPARTMENT OF JUSTICE
DIVISION OF CRIMINAL INVESTIGATION
Crime Information Bureau**

Allow 30 Days For Processing

PARTICIPANT INSTRUCTIONS AND SEQUENTIAL CHECKLIST

ONCE IN A LIFETIME: You may petition under Part 11 only once, including if you previously petitioned or received expungement. Review the entire conviction inventory displayed with this packet and expressly confirm it before generation. Anything omitted cannot be added later. Questions about using the lifetime petition now or waiting require legal help.

FRONT-LOADED PREPARATION: obtain the DOJ CRISS background check; search BOTH Montana Public Access Portals, District Courts AND Courts of Limited Jurisdiction (SEARCHES, Case Searches, By Party); obtain the final judgment for EVERY conviction. A CRISS check alone can omit misdemeanors. Reconcile discrepancies before confirming the complete inventory.

START THE FD-258 STEP NOW: obtain the free blue applicant fingerprint card from DOJ CRISS and arrange fingerprints with law enforcement or a private vendor, expecting a fee. Fingerprints validate identity under MCA 46-18-1104(3). The completed card is required before the DOJ submission, never before this court packet can be generated.

DISTRICT COURT VENUE: file a civil petition in a district court in a judicial district where at least one conviction occurred, even when the convicting court was Justice, Municipal or City Court. If more than one district qualifies, the participant chooses; this packet does not choose for you. Advice about the choice is a self-help stop. The DOJ flowchart reference to the Supreme Court does not change this district-court venue.

BEFORE FILING: contact the chosen district court clerk through the Court Locator at <https://courts.mt.gov/locator/> and confirm local rules, paper filing, any required cover sheet/addendum and fee. Adopted May 2024 civil fee schedule total: \$120 (not the \$90 base alone); confirm current fee with the clerk. If unable to pay, obtain the published fee-waiver materials at <https://www.montanalawhelp.org/> and follow the clerk instructions. This packet does not reproduce the restricted MLSA fee-waiver, ER-100 or ER-200 forms. Court copies, background checks and fingerprinting may cost extra; the CRISS request has no fee.

REVIEW AND SIGN: all listed offenses must be Montana state-court misdemeanor convictions. No general felony or automatic conviction sealing route is supplied. Confirm all fines, fees, restitution and treatment are complete and the other presumption facts are accurate. The five-year route and military route are distinct. The prosecution office must verify that you are not detained, charged or subject to pending charges. The court decides by a preponderance of the evidence; no guaranteed outcome or public-safety finding is authored.

Sign the petition declaration under penalty of perjury under Montana law, with actual signature, date, city and state. No notarization is required. The clerk assigns the new civil case number; leave it blank. Leave the judge findings, granted-conviction determinations, order date and signature blank.

FILE FIRST, THEN SERVE: file the civil petition with the chosen district court; serve a file-stamped copy on EVERY county attorney/city attorney office that prosecuted an included offense. Use mail, hand delivery or email according to confirmed local procedure. Complete a separate actual service date, method and server signature for each office and file the certificate as the clerk directs. Printed name of actual server is required before certificate filing; the server is not assumed to be the petitioner.

NOTICE: under MCA 46-18-1106 the prosecution office, not you, has fourteen days from receiving the petition to attempt to notify any victim and document the attempt. This is NOT a deadline for the office to respond to the petition. Do not contact victims to provide statutory notice. Prosecutor opposition, victim appearance or a hearing triggers legal-help handoff; an uncontested petition may be decided without a hearing.

AFTER AN ORDER: the court can grant all, some or none of the requested convictions. Check the signed order and the specific convictions it grants. If scope differs from this request, stop and reconcile the DOJ form and schedule to

the actual granted scope before signing or mailing; do not submit requests for ungranted convictions. Obtain certified copies of the expungement order and each final judgment.

DOJ STAGE: only after the order, use the retained 29 April 2024 CRISS form with Misdemeanor Conviction Expungement (first request) selected. Attach the completed FD-258 card, district court expungement order and judgments; include valid photo identification by default under the adopted attachment treatment. The held source asks for Original Court Judgement and District Court Order. Ask CRISS whether certified copies suffice before mailing irreplaceable originals. The 2023/2024 disagreement remains unresolved; no official-source requirement is silently removed.

PARTICIPANT DISTRIBUTION under MCA 46-18-1110(2)(b): send the order, fingerprints and DOJ form to the arresting agency, prosecution office and clerk of each convicting court, AND to DOJ. Use the complete recipient list in these instructions. This is your responsibility; court entry alone does not complete expungement. Keep copies and mailing/service proof. For more charges than fit on the four source lines, attach the complete conviction continuation schedule; the DOJ field explicitly points to it.

Mail the CRISS packet to CRISS Expungement, 2225 11th Ave., PO Box 201403, Helena, MT 59620. Questions: 406-444-3625; dojcriss@mt.gov. The form directs allowing thirty days for processing and says CRISS provides a confirmation letter. The arrest or fingerprinting date must be completed from the actual event before DOJ submission; do not invent it. The last four SSN digits are optional. Sign and date the DOJ form personally.

VERIFY AFTER PROCESSING: obtain the CRISS confirmation, re-pull your criminal record, and search BOTH court portals again. DOJ expungement means permanent destruction, deletion or erasure from its criminal history system; local arresting agencies, prosecutors and courts permanently SEAL their records. Fingerprint and investigative data are excluded by MCA 46-18-1103(2)(b). If records remain, contact the relevant custodian and obtain legal help.

REVIEW LIMIT: synthetic nonfiling fixtures only. This is original drafted court text plus an explicitly identified DOCX-derived print, not a copy of ER-100/ER-200 and not an acquired official PDF. Independent source-fidelity, semantic and raster acceptance remain pending. No commercial authority is granted.

RELEASE NOTES: original-versus-certified attachment practice, source supporting-process classification, local filing rules, fee-waiver form availability, prior revoked deferral and denial legal effect remain recorded review questions.

SELF-HELP STOPS: The record includes any conviction in the § 46-18-1108(1) categories: assault, partner or family member assault, stalking, sexual assault, violation of a protective order, DUI, or any DUI-enhanced offence. Any other circumstance defeats the presumption and a § 46-18-1108(2) argument is needed. That argument is not written by LegalEase. The prosecution office opposes, or a victim appears. A hearing is set. Any sentencing term, financial obligation or treatment condition is arguably incomplete. There are out-of-state, federal or Tribal convictions in the record. There is a prior revoked deferred imposition. The participant is a noncitizen or there is any immigration consequence. The participant wants to attack the underlying conviction. The participant asks whether they may now deny the conviction. The participant is deciding whether to spend the one lifetime petition now or wait for a further conviction to age out. The participant needs help choosing among eligible judicial districts.

SYNTHETIC INTAKE FACTS FOR AUTHOR REVIEW

fullName: Maria-Alejandra Isabel O'Shaughnessy-Whitfield

dateOfBirth: 04/17/1991

mailingAddress: 1188 Upper Tallapoosa Crossing Road, Apartment 14B, Missoula, MT 59801

convictionInventory: [{"crime": "Theft", "caseNumber": "TK-2015-000001", "convictionDate": "2015-02-11", "court": "Lewis and Clark County Justice Court", "judicialDistrict": "FIRST JUDICIAL DISTRICT", "county": "Lewis and Clark", "classification": "misdemeanor", "jurisdiction": "Montana state court", "prosecutorId": "county", "arrestingAgency": "Lewis and Clark County Sheriff", "agencyAddress": "200 Example Agency Road, Helena, MT 59601", "clerkAddress": "300 Example Court Avenue, Helena, MT 59601", "presumptionDefeating": false, "marijuana": false}, {"crime": "Criminal mischief", "caseNumber": "TK-2015-000002", "convictionDate": "2015-02-12", "court": "Lewis and Clark County Justice Court", "judicialDistrict": "FIRST JUDICIAL DISTRICT", "county": "Lewis and Clark", "classification": "misdemeanor", "jurisdiction": "Montana state court", "prosecutorId": "county", "arrestingAgency": "Lewis and Clark County Sheriff", "agencyAddress": "200 Example Agency Road, Helena, MT 59601", "clerkAddress": "300 Example Court Avenue, Helena, MT 59601", "presumptionDefeating": false, "marijuana": false}, {"crime": "Disorderly conduct", "caseNumber": "TK-2015-000003", "convictionDate": "2015-02-13", "court": "Lewis and Clark County Justice Court", "judicialDistrict": "FIRST JUDICIAL DISTRICT", "county": "Lewis and Clark", "classification": "misdemeanor", "jurisdiction": "Montana state court", "prosecutorId": "city", "arrestingAgency": "Lewis and Clark County Sheriff", "agencyAddress": "200 Example Agency Road, Helena, MT 59601", "clerkAddress": "300 Example Court Avenue, Helena, MT 59601", "presumptionDefeating": false, "marijuana": false}, {"crime": "Criminal trespass", "caseNumber": "TK-2015-000004", "convictionDate": "2015-02-14", "court": "Missoula County Justice Court", "judicialDistrict": "FOURTH JUDICIAL DISTRICT", "county": "Missoula", "classification": "misdemeanor", "jurisdiction": "Montana state court", "prosecutorId": "missoula", "arrestingAgency": "Missoula County Sheriff", "agencyAddress": "200 Example Agency Road, Missoula, MT 59601", "clerkAddress": "300 Example Court Avenue, Missoula, MT 59601", "presumptionDefeating": false, "marijuana": false}, {"crime": "Theft", "caseNumber": "TK-2015-000005", "convictionDate": "2015-02-15", "court": "Missoula County Justice Court", "judicialDistrict": "FOURTH JUDICIAL DISTRICT", "county": "Missoula", "classification": "misdemeanor", "jurisdiction": "Montana state court", "prosecutorId": "missoula", "arrestingAgency": "Missoula County Sheriff", "agencyAddress": "200 Example Agency Road, Missoula, MT 59601", "clerkAddress": "300 Example Court Avenue, Missoula, MT 59601", "presumptionDefeating": false, "marijuana": false}, {"crime": "Criminal mischief", "caseNumber": "TK-2015-000006", "convictionDate": "2015-02-16", "court": "Missoula County Justice Court", "judicialDistrict": "FOURTH JUDICIAL DISTRICT", "county": "Missoula", "classification": "misdemeanor", "jurisdiction": "Montana state court", "prosecutorId": "missoula", "arrestingAgency": "Missoula County Sheriff", "agencyAddress": "200 Example Agency Road, Missoula, MT 59601", "clerkAddress": "300 Example Court Avenue, Missoula, MT 59601", "presumptionDefeating": false, "marijuana": false}]

convictionInventoryConfirmed: true

prosecutingOffices: [{"id": "county", "name": "Lewis and Clark County Attorney", "address": "100 Example Civic Avenue, Helena, MT 59601", "email": "county@example.org"}, {"id": "city", "name": "Helena City Attorney", "address": "100 Example Civic Avenue, Helena, MT 59601", "email": "city@example.org"}, {"id": "missoula", "name": "Missoula County Attorney", "address": "100 Example Civic Avenue, Missoula, MT 59601", "email": "missoula@example.org"}]

judicialDistrictChoice: FOURTH JUDICIAL DISTRICT

sentencingTermsComplete: true

completionDate: 2020-09-13

anyConvictionSinceCompletion: false

currentlyDetainedOrCharged: false

priorPetition: false

militaryBasis: none

presumptionDefeatingOffense: false

outOfStateOrTribal: false

priorRevokedDeferred: false

PARTICIPANT DISTRIBUTION LIST

Conviction 1 (TK-2015-000001): arresting agency Lewis and Clark County Sheriff, 200 Example Agency Road, Helena, MT 59601; prosecution Lewis and Clark County Attorney, 100 Example Civic Avenue, Helena, MT 59601; convicting-court clerk Lewis and Clark County Justice Court, 300 Example Court Avenue, Helena, MT 59601.

Conviction 2 (TK-2015-000002): arresting agency Lewis and Clark County Sheriff, 200 Example Agency Road, Helena, MT 59601; prosecution Lewis and Clark County Attorney, 100 Example Civic Avenue, Helena, MT 59601; convicting-court clerk Lewis and Clark County Justice Court, 300 Example Court Avenue, Helena, MT 59601.

Conviction 3 (TK-2015-000003): arresting agency Lewis and Clark County Sheriff, 200 Example Agency Road, Helena, MT 59601; prosecution Helena City Attorney, 100 Example Civic Avenue, Helena, MT 59601; convicting-court clerk Lewis and Clark County Justice Court, 300 Example Court Avenue, Helena, MT 59601.

Conviction 4 (TK-2015-000004): arresting agency Missoula County Sheriff, 200 Example Agency Road, Missoula, MT 59601; prosecution Missoula County Attorney, 100 Example Civic Avenue, Missoula, MT 59601; convicting-court clerk Missoula County Justice Court, 300 Example Court Avenue, Missoula, MT 59601.

Conviction 5 (TK-2015-000005): arresting agency Missoula County Sheriff, 200 Example Agency Road, Missoula, MT 59601; prosecution Missoula County Attorney, 100 Example Civic Avenue, Missoula, MT 59601; convicting-court clerk Missoula County Justice Court, 300 Example Court Avenue, Missoula, MT 59601.

Conviction 6 (TK-2015-000006): arresting agency Missoula County Sheriff, 200 Example Agency Road, Missoula, MT 59601; prosecution Missoula County Attorney, 100 Example Civic Avenue, Missoula, MT 59601; convicting-court clerk Missoula County Justice Court, 300 Example Court Avenue, Missoula, MT 59601.